

Texas Medmal Whitepaper

AI Medical Malpractice Intake in Texas: Navigating Chapter 74 Tort Reform and Expert Report Requirements

****State:**** Texas

****Primary Statutes:**** Texas Civil Practice & Remedies Code, Chapter 74

****SOL:**** 2 years

****Damage Caps:**** \$250,000 per claimant (non-economic)

****Fault Doctrine:**** Modified comparative fault (51% bar)

#Executive Summary

Texas has one of the most restrictive medical malpractice environments in the country, shaped by Chapter 74 tort reform legislation. With strict damage caps, mandatory expert report deadlines, and a 10-year statute of repose, Texas firms must screen cases with precision. This whitepaper examines how AI transforms med mal intake for Texas plaintiff firms.

#The Texas MedMal Landscape

##Statute of Limitations and Repose

Texas applies a 2-year statute of limitations from the date of the alleged tort or from the date the injury was discovered (or should have been discovered). A 10-year statute of repose (extended from 15 years by recent legislation) provides the outer boundary for most claims.

##Expert Report Requirements

Texas law requires plaintiffs to serve an expert report within 120 days of filing each defendant's answer (Ch. 74, § 74.351). Failure to do so results in mandatory dismissal with prejudice. This creates immense pressure on plaintiff firms to have expert witnesses secured and report-ready within months of filing - making early case screening and merit assessment critical.

##Damage Caps

Chapter 74 imposes strict caps on non-economic damages:

- ****\$250,000 per claimant**** against each physician or health care provider
- ****\$250,000 per claimant**** against each single institution
- ****\$500,000 total maximum**** against all defendants

Economic damages (medical expenses, lost wages) are not capped, making damages calculations complex.

#How LexiFlow Addresses Texas's Unique Challenges

##Expert Report Readiness

MeritScan generates a citation-backed preliminary merit report that can serve as a foundation for the expert report required by Chapter 74. The AI identifies key negligence markers, deviation from standard of care, and causation chains - giving expert witnesses a running start.

##Cap-Aware Case Valuation

LexiFlow's valuation engine incorporates Texas's damage caps, distinguishing between capped non-economic damages and uncapped economic damages. This ensures firms understand the true ceiling on potential recovery before accepting a case.

##Modified Comparative Fault Assessment

Texas bars recovery if the plaintiff is found to be 51% or more at fault. LexiFlow's qualification scoring flags potential comparative fault issues and estimates their impact on case value.

#ROI for Texas Firms

Metric	Manual Process	LexiFlow AI
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Time to preliminary merit assessment	1-2 weeks	3 minutes
Expert report preparation time	20-40 hours	3-5 hours (with AI prep)
Cost per case screened	\$1,200-\$1,800	\$75-\$150
Cases screened per paralegal per week	3-5	20-30

#Conclusion

Texas's strict Chapter 74 requirements make early, accurate case assessment essential. AI-powered intake and merit review gives Texas firms the speed and precision needed to comply with expert report deadlines while screening more cases at lower cost.

LexiFlow Legal Suite - \$69/month. leads@lexiflow.co